

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

Court of Appeal Case No.

CA/HCC/0005/2025

High Court of Jaffna

Case No. 2812/2019

Democratic Socialist Republic of Sri
Lanka

COMPLAINANT

Vs.

Stanley Sritharan alias Stalin Sriragan
alias Kutty

ACCUSED

AND NOW BETWEEN

Stanley Sritharan alias Stalin Sriragan
alias Kutty

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Ershan Ariyaratnam for the Appellant.**
Nishanth Nagaratnam, SC for the
Respondent.

ARGUED ON : **13/07/2026**

DECIDED ON : **01/09/2026**

JUDGMENT

P. Kumararatnam. J,

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted for committing the murder of Sritharan Shanthini on 20.06.2015 which is an offence punishable under Section 296 of the Penal Code.

After a trial, the Learned High Court Judge has found the Appellant guilty of the charge and sentenced him to death on 19/06/2024.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

At the hearing the Appellant was connected via the Zoom platform from prison.

Background of the Case

According to PW1 Annaluxmi, the mother of the deceased, on the day of the incident she had witnessed the Appellant pouring kerosene oil over the body of the deceased and setting fire to her. The Appellant is the husband of the deceased and the son-in-law of the witness. After extinguishing the fire by pouring water, she called her son PW2 to take the deceased to the hospital. She also said that the deceased had made a dying declaration to the doctor who attended her at the hospital.

PW6 PC 81448 Terrance had recorded the statement of the deceased at the hospital.

The post mortem examination report was admitted under section 420 of the Code of Criminal Procedure Act No.15 of 1979. According to the JMO the death was due to extensive thermal burn injuries and inhalational injuries.

As the Learned High Court called the defence, the Appellant made a dock statement from the dock and denied the charge.

On behalf of the Appellant, the following grounds of appeal are raised:

1. The learned High Court Judge had failed to consider the credibility of PW1.
2. The Learned High Court Judge had failed to consider the reliability of the dying declaration.
3. The Learned High Court Judge had failed to consider the circumstantial evidence and has failed to evaluate the same.
4. The Learned High Court Judge had failed to consider the defence case and rejected the defence case unfairly.
5. The Learned High Court Judge had failed to comply with Section 280 of the Code of Criminal Procedure Act No. 15 of 1979.
6. The Learned High Court Judge had failed to analyse whether the injuries will cause death in the normal cause of events.

The Learned Counsel for the Appellant strenuously contended that his client was deprived of a fair trial. His argument was that the Appellant was not properly arraigned in this case. The charge was not read to him and the jury option was not given. The indictment was served on the Appellant on 20.02.2020. It was not read to him until the end of the trial. When this case was called to deliver the judgment on 13.06.2024, the Learned High Court Judge decided to re-call PW1 and PW2 and led their evidence. Both were not cross examined. At this juncture, the learned State Counsel made an application to amend the indictment by including the alias names of the Appellant in the indictment. The Court allowed the application and included

the alias names of the Appellant in the indictment. Thereafter, the amended indictment was read out to him and the Appellant pleaded not guilty to the indictment. At this point too, no jury option was given to the Appellant.

In criminal trials, a charge refers to the formal, written accusation by the government stating that the individual has committed a specific crime. A charge would serve as the foundation of the legal proceedings that follow, and therefore would serve as the blueprint which determines factors such as the relevance of evidence, what must be proven by the prosecution and the defendant's rights.

In Sri Lanka's criminal courts, trial by jury is an option which is primarily available for the most serious crimes heard in the High Court. As per the Judicature Act, an accused would have the right to elect whether to be tried by a jury or by a judge sitting alone.

In **Attorney General v Segulebbe Latheef and Another** [2008] 1 SLR 225 the Supreme Court held that:

"As long as it is in the statute book that the accused can elect to be tried by a jury, the trial judge has an obligation not only to inquire from him whether he is to be tried by a jury, judge must also inform that the accused has a legal right to that effect. Non observance of this procedure is an illegality and not a mere irregularity".

In **Jayasooriya and others v AG** [2009] 1 SLR 101 the Court held that:

"To ensure a fair trial, the legislature in its wisdom from time to time has promulgated several fundamental concepts and statutory duties into our criminal law, the offering of the jury option is one such concept".

In this case when the charge was read to the Appellant the jury option was not given. Further, when the charge was read to the Appellant after the amendment to the indictment, the jury option was not given to the Appellant. I consider this to be a serious omission. Appellate courts would consider

such omissions to be fatal procedural defects rather than merely minor technicalities. Therefore, the entire trial process may be declared void. In situations where the charge has not been properly read and the process has not been followed; the Appellate Court has the power to order a fresh trial.

Guided by the judgements mentioned above, I conclude that this is an appropriate case to send for re-trial. Therefore, his appeal allowed.

The Registrar of this Court is directed to send this judgment to High Court of Jaffna along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL